BIRKS & MYRA STREET RESIDENTS · PARKSIDE

Groundwater down Birks St: *whose approval is it?*

For 4+ years, groundwater from the new builds at the Fullarton Rd end has run constantly down the Birks St gutter, carrying debris and pooling at the corner of Myra St.

Community meeting
Mon 9 November 2026
5:00–6:00pm
Corner of Birks & Myra St

With the Unley Council Assets Manager & Parkside Ward Councillors

"The EPA must have approved it." Council's own policy says otherwise

Unley Council has previously said the discharge must have been approved by the EPA as part of the building approval. But the kerb and gutter are **Council's** assets, and Council's own policy is clear:

> "Ground Water Discharge through any stormwater connection to the street (kerb water table or laneway) is **prohibited**, unless Council approves a connection that is made directly to its underground stormwater infrastructure, having given consideration to the flow volume, flow rate, discharge frequency and water quality."
>
> City of Unley, *Construction of Crossing Places & Stormwater Pipes from Properties Policy*, clause 6.8 (current version 8 Dec 2025)

What this means

- **Council's approval is needed, whatever the EPA said.** The policy allows only a *direct underground* connection, never open flow down the gutter.
- **The officer responsible for the policy is the Manager City Assets** (policy section 5), whose role is attending the meeting.
- **Street stormwater connections are made by Council** or with its permission (clauses 6.3 & 6.10), so Council should have a record of these outlets.
- **EPA referral isn't automatic.** Developments are only referred to the EPA in specific categories under the state planning regulations. If an EPA approval exists, there should be a document with a reference number.
- The policy's own objectives: no *nuisance, environmental harm or unnecessary risk* (3.9), no added flood risk downstream (3.10), and *minimise damage to Council infrastructure* (3.11).

Questions to ask on the day

1. Has Council approved a groundwater connection for these properties under clause 6.8? Can we see it?
2. If the EPA approved it, **which document**? A referral response, a licence or a development condition? What's the reference number?
3. Is this temporary construction dewatering, or a **permanent** drainage system?
4. Has anyone **tested the water**? (The orange-brown staining suggests iron.)
5. What has 4 years of constant water done to the **road surface and kerb**, and who pays?
6. What about algae, slippery surfaces and mosquitoes in the standing pool?
7. **What happens next, by when, and who is our contact?** Please confirm in writing.

What a good outcome looks like

Council confirms in writing whether the discharge is approved. If it isn't, the owners must connect directly to the underground stormwater system or stop the discharge, by a set date. Council inspects and records any damage to the road and kerb. We get a named officer and a follow-up date.

Photos, timeline & updates: birkscreek.pages.dev
Share your observations: birkscreek@gmail.com
Can't attend? Contact your Ward Councillors:
Cr Jennifer Bonham, jbonham@unley.sa.gov.au · Cr Luke Doyle, ldoyle@unley.sa.gov.au

Prepared by local residents for discussion. Not legal advice. Policy quotes are from the City of Unley's published policy (unley.sa.gov.au). Please check details with Council.